



**JABATAN PEMBANGUNAN KEMAHIRAN
KEMENTERIAN SUMBER MANUSIA
ARAS 7 & 8 BLOK D4, KOMPLEKS D
PUSAT PENTADBIRAN KERAJAAN PERSEKUTUAN
62530 PUTRAJAYA**

KERTAS PENERANGAN
(INFORMATION SHEET)

KOD DAN NAMA PROGRAM / <i>PROGRAM'S CODE AND NAME</i>	Z-009-3:2015CORE ABILITIES	
TAHAP / LEVEL	3 (THREE)	
NO. DAN TAJUK KEBOLEHAN TERAS / <i>CORE ABILITY NO. AND TITLE</i>	CA06 HEALTH, SAFETY AND ENVIRONMENTAL IMPLEMENT CONSCIOUSNESS	
NO. DAN PENYATAAN KEBOLEHAN / <i>ABILITY NO. AND STATEMENT</i>	6.1 EXECUTE HEALTH CONSCIOUSNESS 6.2 EXECUTE SAFETY CONSCIOUSNESS 6.3 EXECUTE ENVIRONMENT COMPLIANCE	
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**TAJUK/TITLE: OCCUPATIONAL SAFETY AND HEALTH (OSH) ACT,
INDUSTRIAL CODE OF PRACTISE (ICOP) AND GUIDELINES**

TUJUAN/PURPOSE:

This Information Sheet is intended to describe on the Occupational Safety And Health (OSH) Act, Industrial Code Of Practise (ICOP) and Guidelines. The person who is competent in health, safety and environmental consciousness shall be able to execute health consciousness, execute safety consciousness and execute environment compliance.

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PENERANGAN/INFORMATION:

1. Occupational Safety And Health Act 1994

Section 15. General duties of employers and self-employed persons to their employees.

(1) It shall be the duty of every employer and every self-employed person to ensure, so far as is practicable, the safety, health and welfare at work of all his employees.

(2) Without prejudice to the generality of subsection (1), the matters to which the duty extends include in particular-

- (a) the provision and maintenance of plant and systems of work that are, so far as is practicable, safe and without risks to health;
- (b) the making of arrangements for ensuring, so far as is practicable, safety and absence of risks to health in connection with the use or operation, handling, storage and transport of plant and substances;
- (c) the provision of such information, instruction, training and supervision as is necessary to ensure, so far as is practicable, the safety and health at work of his employees;
- (d) so far as is practicable, as regards any place of work under the control of the employer or self-employed person, the maintenance of it in a condition that is safe and without risks to health and the provision and maintenance of the means of access to and egress from it that are safe and without such risks;
- (e) the provision and maintenance of a working environment for his employees that is, so far as is practicable, safe, without risks to health, and adequate as regards facilities for their welfare at work.

(3) For the purposes of subsections (1) and (2)-

- (a) "employee" includes an independent contractor engaged by an employer or a self-employed person and any employee of the independent contractor; and (b) the duties of an employer or a self-employed person under subsections (1) and (2) extend to such an independent contractor and the independent contractor's employees in relation to matters over which the employer or self-employed person-

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(i) has control; or (ii) would have had control but for any agreement between the employer or self-employed person and the independent contractor to the contrary.

Section 16. Duty to formulate safety and health policy. Except in such cases as may be prescribed, it shall be the duty of every employer and every self-employed person to prepare and as often as may be appropriate revise a written statement of his general policy with respect to the safety and health at work of his employees and the organization and arrangements for the time being in force for carrying out that policy, and to bring the statement and any revision of it to the notice of all of his employees.

Section 17. General duties of employers and self-employed persons to persons other than their employees.

(1) It shall be the duty of every employer and every self-employed person to conduct his undertaking in such a manner as to ensure, so far as is practicable, that he and other persons, not being his employees, who may be affected thereby are not thereby exposed to risks to their safety or health.

(2) It shall be the duty of every employer and every self-employed person, in the prescribed circumstances and in the prescribed manner, to give to persons, not being his employees, who may be affected by the manner in which he conducts his undertaking, the prescribed information on such aspects of the manner in which he conducts his undertaking as might affect their safety or health.

Section 18. Duties of an occupier of a place of work to persons other than his employees.

(1) An occupier of non-domestic premises which has been made available to persons, not being his employees, as a place of work, or as a place where they may use a plant or substance provided for their use there, shall take such measures as are practicable to ensure that the premises, all means of access thereto and egress there from available for use by persons using the premises, and any plant or substance in the premises or provided for use there, is or are safe and without risks to health.

(2) A person who has, by virtue of a contract or lease or otherwise, an obligation of any extent in relation to -

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(a) the maintenance or repair of a place of work or any means of access thereto or egress there from; or

(b) the prevention of risks to safety and health that may arise from the use of any plant or substance in the place of work,

shall for the purpose of subsection (1) be deemed to have control of the matters to which his obligation extends.

Section 19. Penalty for an offence under section 15, 16, 17 or 18. A person who contravenes the provisions of section 15, 16, 17 or 18 shall be guilty of an offence and shall, on conviction, be liable to a fine not exceeding fifty thousand ringgit or to imprisonment for a term not exceeding two years or to both.

Safety and health Organisation

The Act spells out 3 essential provisions pertaining to medical surveillance, establishment of safety and health committees and requirements for safety and health officers.

Act empowers Minister to make regulations where work poses high risk to workers and medical surveillance is required.

Mandatory for place of work employing more than 40 workers to establish safety and health committee.

Employer must consult committee on matters of OSH to be implemented encourages worker-employer co-operation and participation.

Act empowers the Minister to gazette such class or description of industries which requires a competent person called a safety and health officer.

Notification of Accidents Dangerous Occurrences, Occupational Poisoning and Diseases

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The onus to report the above is on the employer and he shall notify the nearest DOSH office by the quickest means available.

The responsibility to occupational diseases or poisoning is on the registered medical practitioner.

Industry Codes of Practice

To create a flexible legislative system, the Act spells out the role of industry codes practice as guidance to comply with the Act.

The Minister can approve such codes and gazette them and are admissible as evidence in court proceedings.

Enforcement and Compliance Officers

Responsibility to enforce Act on Director General (DG) who is a public officer. Other public officers are also appointed to assist the DG in performing his duties under the Act.

Officers have wide powers to enter, inspect, examine, seize, investigate and examine witnesses when directed by DG to hold an inquiry.

Enforcement Officers given wide power to issue:

(a) improvement notices

(b) prohibition notices where owners have to immediately cease operation and cannot resume work until corrective measures which satisfy the officer have been taken. If owner is aggrieved by the decision, he can appeal to the DG.

Liability for Offences and Penalties

Both the body corporate (company) and other persons who are in control of corporation are liable for contravention of any provisions of the Act. Maximum penalties stipulated are RM50,000 fine or 5 years imprisonment or both.

The regulation made under OSHA 1994.

Table 1: Regulation made under OSHA 1994

	REGULATION	YEAR
1	Employer's Safety and Health General Policy Statement (Exception)	1995
2	Control of Industrial Major Accident Hazards	1996
3	Safety and Health Committee	1996
4	Classification, Packaging, and Labelling of Hazardous Chemicals	1997
5	Safety and Health Officer	1997
6	Safety and Health Officer Order	1997
7	Prohibition of Use of Substance	1999
8	Use and Standards of Exposure of Chemicals Hazardous to Health	2000
9	Notification of Accident, Dangerous Occurrence, Occupational Poisoning and Occupational Disease	2004

Table 2:Guidelines made under OSHA 1994

GUIDELINES	YEA R

	Guideline In Courier Services Industry	2015
	Guidelines For The Protection Of Employees Against The Effects Of Haze At Workplaces	2013
	Guidelines For Media Professionals	2012
	Guidelines On Occupational Safety And Health Management Systems (OSHMS)	2011
	Guidelines On Occupational Safety And Health Act 1994 (Act 514),	2006
	Guidelines On Occupational Safety And Health (Notification Of Accident, Dangerous Occurrence, Occupational Poisoning & Occupational Disease) Regulations 2004 (NADOPOD)	2005
	Guidelines On Occupational Safety And Health In The Service Sector	2004
	Guidelines On Gender Issues In Occupational Safety & Health	2003
	Guidelines On Occupational Safety And Health In The Office	1996
	Guidelines On Occupational Vibration	2003
	Guidelines On Occupational Safety And Health For Seating At Work	2003
	Guidelines On Occupational Safety And Health For Working With Video Display Unit (VDU's)	2003
	Guidelines On Occupational Safety And Health For Standing At Work	2002
	Guidelines On Occupational Safety And Health In Logging Operations	2004
	Guidelines On Occupational Safety And Health In Fishing And Aquaculture Operations	2003
	Guidelines On Occupational Safety And Health In Agriculture	2002
	Guidelines On Occupational Safety And Health In Agriculture, (Mandarin Version)	2002
	Guidelines On Occupational Safety And Health In Agriculture, (Tamil Version)	2002
	Guidelines On The Safety Management Of Amusement Park Devices	2008
	Guidelines For Preparation Of Demonstration Of Safe Operation Document (General)	2001
	Guidelines For Preparation Of Demonstration Of Safe Operation Document (Storage Of Liquefied Petroleum Gas In Cylinder)	2001
	Guidelines On Mercury Management In Oil And Gas Industry,	2011
	Panduan bagi menggunakan penaksiran risiko bahan kimia berbahaya kepada kesihatan (CHRA) Secara Generik	2006
	Guidelines On Storage Of Hazardous Chemicals: A Guide For Safe	2005

	Warehousing Of Packaged Hazardous Chemicals	
	Guidelines On The Use Of Personal Protective Equipment Against Chemicals Hazards	2005
	Guidelines On The Monitoring Of Airborne Contaminant For Chemicals Hazardous To Health	2002
	Guidelines On The Control Of Chemicals Hazardous To Health	2001
	Guidelines For The Preparation Of A Chemical Register	2000
	Assessment Of The Health Risks Arising From The Use Of Hazardous Chemical In The Workplace (2nd Edition)	2000
	Guidelines On Method Of Sampling And Analysis For Airborne Lead	1997
	Guidelines For Control Of Occupational Noise	2005
	Guidelines On Occupational Safety And Health For Design, Inspection, Testing And Examination Of Local Exhaust Ventilation System	2008
	Guidelines For Hazard Identification, Risk Assessment And Risk Control (HIRARC)	2008
	Guidelines On Occupational Health Services	2005
	Guidelines On Preventing And Responding To Drugs And Alcohol Problems In The Workplace	2004
	Guidelines On First Aid In The Workplace (2nd Edition)	2004
	Guidelines On Reproductive Health Policy & Programmes At The Workplace	2002
	Guidelines On Medical Surveillance	2001
	Guidance For The Prevention Of Stress And Violence At The Workplace	2001
	Garis Panduan Sistem Mata Bagi Program Pendidikan Berterusan	2012
	Garis Panduan pendaftaran pusat pengajar penyelia keselamatan tapak bina	2011
	Garis Panduan Latihan Pekerja, Pendaftaran pusat pengajaran dan pengendalian kursus keselamatan dan kesihatan pekerja Di Ruang Terkurung	2008
	Garis Panduan Pengiktirafan Sebagai Pusat Pengajar Kursus Operator Kren	2004
	Garis panduan untuk permohonan pengiktirafan sebagai pusat pengajar pengendali perancah	2003
	Garis panduan untuk memohon sebagai pusat pengajar pegawai keselamatan dan kesihatan,	2003
	Guidelines For The Registration Of Assessors, Hygiene Technician And Occupational Health Doctor,	2000

	Examination Syllabus For Engineer's Certification Of Competency (Steam And Internal Combustion Engines) Examination,	1996
	Guidelines For Public Safety And Health At Construction Sites,	2007
	Guidelines For The Prevention Of Falls At Workplaces,	2007
	Guidelines On Trenching For Construction Safety,	2000
	Guidelines On Occupational Safety And Health In Tunnel Construction,	1998

Table 3:Code of Practices made under OSHA 1994

	ICOP	YEAR
1.	Approved Code Of Practice On HIV/AIDS In Workplace	2001
2.	Code Of Practice On Prevention And Management Of HIV/AIDS At The Workplace	2001
3.	Industry Code Of Practice On Chemicals Classification And Hazard Communication,	2014
4.	Industry Code Of Practice On Indoor Air Quality,	2010
5.	Code Of Practice For Road Transport Activities,	2010
6.	Code Of Practice On Safety, Health And Environment For Transportation Sector (She Code),	2007
7.	Code Of Practice On Prevention And Eradication Of Drug, Alcohol And Substance Abuse In The Workplace,	2005
8.	Code Of Practice On Prevention And Management Of Hiv/Aids At The Workplace,	2001
9.	Industry Code Of Practice For Safe Working In A Confined Space,	2010

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2. Factories And Machinery Act 1967.

PART I - PRELIMINARY

1. Short title
2. Interpretation of “factory”
3. Interpretation: general
4. Appointment of officers
5. Supervision of officers
6. Officers are public servants
7. Powers of an Inspector
8. Obstruction an offence
9. Persons not to reveal secrets

PART II

SAFETY, HEALTH AND WELFARE

10. Provisions relating to safety, *etc.*
11. Persons exposed to explosive, inflammable, *etc.*, substances
12. Lifting of weights
13. Provisions against fire
14. Construction of machinery
15. Dangerous parts of machinery
16. Projecting material
17. Machinery for hire or sale must comply with regulations
18. Machinery manufactured or repaired must comply with regulations
19. Certificate of fitness
20. Duties of persons employed
21. Duties of occupier
22. Provisions relating to health
23. Exposure to elements
24. Personal protective clothing and appliances
25. Provisions relating to welfare

PART III

PERSON IN CHARGE AND CERTIFICATES OF COMPETENCY

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- 26. Training and supervision of inexperienced workers
- 27. Chief Inspector may make orders in circumstances
- 28. Young persons
- 29. Certain machinery not to be operated without certificated staff
- 30. Panel of Examiners and Board of Appeal

PART IV

NOTIFICATION OF ACCIDENT, DANGEROUS OCCURENCE AND DANGEROUS DISEASES

- 31. Accidents and dangerous occurrence to be reported
- 32. Notification of industrial diseases
- 33. Investigation and enquiries

PART V

NOTICE OF OCCUPATION OF FACTORY, AND REGISTRATION AND USE OF MACHINERY

- 34. Operation of factory
- 35. Building operations or works of engineering construction
- 36. Installation of machinery, etc.
- 37. Application for registration
- 38. Register
- 39. Moving or alteration of or addition to machinery to be approved
- 40. Periodical inspections
- 41. Questions for decision by an Inspector and appeals from such decision
- 42. Report of changes, etc.
- 43. Machinery or factory no longer in use
- 44. Notice of sale, hire or transfer
- 45. Copy of report of enquiry may be supplied
- 46. Powers of the Chief Inspector and Senior Inspectors at enquiries

PART VI

GENERAL

- 47. Criminal or civil liability unaffected
- 48. Fees
- 49. Chief Inspector's powers
- 50. Offences
- 51. Penalties
- 52. Prosecutions
- 52A. Power to compound
- 53. Power to modify agreements
- 54. Power to apportion expenses
- 55. Exemptions
- 56. Regulations
- 57. Medical supervision
- 58. Repeal
- 59. Amendment of Schedule

Table 4:The regulation made under FMA, 1967

	REGULATIONS	YEAR
	Factories And Machinery (Person-In-Charge) (Amendment) Regulations	2014
	Factories And Machinery (Special Scheme Of Inspection) (Risk-Based Inspection) Regulations	2014
	Factories And Machinery (Noise Exposure) Regulations,	1989
	Factories And Machinery (Mineral Dust) Regulations,	1989
	Factories And Machinery (Asbestos) Regulations,	1986
	Factories And Machinery (Building Operations And Works Of Engineering Construction) (Safety) Regulations,	1986

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	Factories And Machinery (Leads) Regulations,	1984
	Factories And Machinery (Compounding Of Offences) Rules,	1978
	Factories And Machinery (Compoundable Offences) Regulations,	1978
	Factories And Machinery (Certificates Of Competency Examinations) Regulations,	1970
	Factories And Machinery (Administration) Regulations,	1970
	Factories And Machinery (Notification Of Fitness And Inspections) Regulations	1970
	Factories And Machinery (Electric Passenger And Goods Lift) Regulations,	1970
	Factories And Machinery (Fencing Of Machinery And Safety) Regulations,	1970
	Factories And Machinery (Safety, Health And Welfare) Regulations,	1970
	Factories And Machinery (Steam Boiler And Unfired Pressure Vessel) Regulations,	1970

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SOALAN/QUESTION :

1. What are the general duties of employer?

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2. What are the safety and health organisation?

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3. Give three list of Industrial Code of Practice?

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2. Chesebro T.; O'Connor L.; Rios F., (2009), Communicating in the Workplace. Prentice Hall. ISBN-13 978-0136136910.
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